BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

COURT NO. V, NEW DELHI

Company Petition No. CP (CAA)-42(ND)/2022

CONNECTED WITH CA (CAA)-63(ND)/2021

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

In the matter of Scheme of Amalgamation

OF

LIFESTAR PHARMA PRIVATE LIMITED

(Transferor Company No. 1/ Petitioner Company No. 1)

AND

MAGNET LABS PRIVATE LIMITED

(Transferor Company No. 2/ Petitioner Company No. 2)

WITH

MANKIND PHARMA PRIVATE LIMITED

(Transferee Company/ Petitioner Company No. 3)

CORAM:

Shri Abni Ranjan Kumar Sinha, Hon'ble Member (Judicial)
Shri Hemant Kumar Sarangi, Hon'ble Member (Technical)

Order Pronounced on: 06.06.2022

For the Applicants:

For the RD/OL: Hemlata Rawat for OL

MEMO OF PARTIES

LIFESTAR PHARMA PRIVATE LIMITED

CIN: U24232DL2004PTC131232

Registered Office at

208, Okhla Industrial Estate, Phase -3,

New Delhi, South Delhi, Delhi, 110020

E-mail id: secretarial.mkd@gmail.com

... Transferor Company No. 1/Petitioner Company No. 1

MAGNET LABS PRIVATE LIMITED

CIN: U51397DL1998PTC093307

Registered Office at

208, Okhla Industrial Estate, Phase -3,

New Delhi, South Delhi, Delhi, 110020

E-mail id: secretarial.mkd@gmail.com

... Transferor Company No. 2/Petitioner Company No. 2

MANKIND PHARMA LIMITED

CIN: U74899DL1991PTC044843

Registered Office at

208, Okhla Industrial Estate, Phase -3,

New Delhi, South Delhi, Delhi, 110020

E-mail id: pradeep.chugh@mankindpharma.com

...Transferee Company/Petitioner Company No. 3

O R D E R

PER: ABNI RANJAN KUMAR SINHA, MEMBER (JUDICIAL)

This petition has been filed by the Petitioner Company under Sections 230 and 232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, for the purpose of the approval of the Scheme of Amalgamation of Transferor Companies no. 1 & 2 into Transferee Company.

2. A perusal of the petition discloses that initially the First Motion joint application was filed before this Tribunal vide CA (CAA)-63(ND)2021 and based on such application, directions were issued by this Tribunal vide order dated 03.01.2022, wherein the meetings of the Equity Shareholders and Secured Creditors and unsecured Creditors of the Transferor Companies No. 1 & 2 was dispensed with. Vide order dated 19.02.2022, the meeting of the Equity Shareholders of the Transferee Company were convened and the meetings of the Secured Creditors and unsecured Creditors of the Transferee Company was dispensed with.

3. As per the directions of this Tribunal, the notices of the said meeting were sent to the concerned members of the Transferee Company by electronic means (e-mails) on 17.01.2022.

4. As per the directions of this Tribunal, the Petitioners were directed to carry out publication in the newspaper, "Business Standard" (English, Hindi Delhi Edition) and the same were published on 13.01.2022 and in addition, notices were directed to be served on to the Regional Director (Northern Region),

Registrar of Companies, NCT of Delhi and Haryana, the Income Tax Department, Official Liquidator, Securities and Exchange Board of India, National Stock Exchange of India Ltd., Bombay Stock Exchange Ltd. and to the other relevant sectoral regulators.

5. The meeting of the equity shareholders of Transferee Company was convened on 19.02.2022 at 11:30 AM virtually through VC/OAVM. The Chairperson appointed by the Tribunal presided over the meeting. The report of Chairman qua result of meetings of the equity shareholders of the Transferee Company has been submitted before this Tribunal on 28.02.2022. (@page 811-827)

6. Thereafter the present 2nd motion petition is filed, within prescribed time limit.

7. It is seen from the records that the Petitioners have filed an affidavit dated 01.03.2022 affirming compliance of the order passed by the tribunal dated 03.01.2022 (@Page 683-684). A perusal of the affidavit discloses that the Petitioners have affected the newspaper publication as directed in one issue of the 'Business Standard (English as well as in Hindi Edition) on 13.01.2022. Further, the Petitioners have also affirmed that the copy of petition has been duly served upon the Registrar of Companies, Regional Director, Northern Region and Income Tax Department, Official Liquidator, Securities and Exchange Board of India, National Stock Exchange of India Ltd., Bombay Stock Exchange Ltd., Competition Commission of India, Central Drugs Standard Control Org. Food Safety & Standard Authority of India and National Pharma

Pricing Authority., in compliance of the order and in proof of the same acknowledgment from the respective offices have also been placed on record.

8. Taking into consideration the above facts and record, it is hereby ordered as follows:

(i) The date of hearing of the Petition filed by the Applicants for the approval of the Scheme is fixed on **12.08.2022**.

(ii) Notice of the hearing shall be advertised in the newspapers namely, "Business Standard" (English and Hindi, Delhi edition) not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the public notice, each of the Applicant(s) shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs; (c) the Income Tax Department through the Income Tax Cell at DCIT (High Court Cell), Lawyer's Chamber, Block No. 1, Room No. 428 & 429, Delhi High Court, New Delhi, along with full details of assessing officer and PAN numbers of all the applicant companies; (d) Official Liquidator; (e) Securities and Exchange Board of India; (f) National Stock Exchange of India Ltd., (g) Bombay Stock Exchange Ltd.; (h) Competition Commission of India; (i) Central Drugs Standard Control Org.; (j) Food Safety & Standard Authority of India; (k) National Pharma

Pricing Authority; and to such other Sectoral Regulatory Authorities who may govern the working of the respective companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition

(iv) Further, notices shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) Both the Applicants shall at least 7 days before the date of hearing of the Petition shall file an affidavit of service in relation to publication effected in the newspapers as well as service of notices on the Authorities specified above including the Sectoral regulator as well as to Objectors, if any.

(vi) Objections to the Scheme, if any, contemplated by the authorities, to whom notices have been given on or before the date fixed for hearing, may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

(vii) Each Applicant Company shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of statutory auditors of the applicant companies.

(viii) The next date of hearing of the Petition shall be on **23.08.2022** for the consideration of the approval of the Scheme of Arrangement as contemplated between the Applicant Companies.

Sd/-

(HEMANT KUMAR SARANGI)

MEMBER (Technical)

Sd/-

06.06.2022

(ABNI RANJAN KUMAR SINHA)

MEMBER (Judicial)